

COURSEWORK SUBMISSION TEMPLATE

Students: In preparing and submitting this assessment, please ensure you adhere to the Coursework Submission Instructions. Add the relevant details

Question(s)/Assignment to be answered (e.g. Essay title):

(a) Copyright should not be used to protect personal interests of the authors. Discuss.

Students: your coursework submission should be inserted below, indicating question numbers (where there are multiple elements):

Copyright, as an area of law, offers legal protection for creative works that ensure the owner of the copyright, often the creator or author of the work, can control how their intellectual property is used. It has been argued that the purpose of copyright is to protect both the exclusive control and financial gain from the use of content and as such the enforcement of copyright should be pursued with such intent¹. Professor Cathay Y. N. Smith ignited academic conversation on the use of copyright to pursue other, personal, interests in her paper on so-called ‘copyright weaponization’ in which she laid out the argument that copyright has been used to pursue non-copyright objectives, meaning with intentions extending beyond these two traditional purposes². In exploring the arguments laid forth by Smith and other academics, as well as reviewing the position of multiple legal theories of copyright, this essay will establish the argument that any use of copyright could be argued to protect the personal interest of the author, and in the circumstances in which Smith argues have an ulterior motive in using copyright, any arguably immoral use of copyright law must still be permitted to uphold the integrity of the system as a whole.

In discussing if copyright should, or should not, be used to protect the personal interests of authors, there must first be a discussion as to what interests copyright should protect. The UK law as set out in the Copyright, Designs and Patents Act 1988 does not require a specific intention behind the pursuit of a copyright claim. In terms of the black-and-white nature of the act, it is clear that copyright can be used for personal interests if so desired.

Smith explores what she defines as ‘non-copyright’ action, or for the purposes of this discussion, actions which use copyright to protect a personal interest rather than a “legitimate” interest focused on economic or exclusivity factors. Without reiterating Smith’s

¹ Cathay Y. N. Smith, ‘*Weaponizing Copyright*’ (2021) Harvard Journal of Law & Technology Volume 35, Number 1, 194.

² Smith(n1) p196.

entire paper, her consensus after sighting a multitude of examples is that copyright can be hijacked as a means to pursue other aims.³ While Smith's argument is thorough, the examples given tend to be not "nice" rather than unlawful. For instance, one of the leading examples used in Smith's argument against such uses of copyright is the attempted use of copyright to prevent Ronan Farrow publishing an expose exposing Harvey Weinstein's sexual misconduct⁴ or Netflix using copyright to remove tweets involving negative criticism⁵. However, the law which allows for such "immoral" outcomes has also been used in "morally right" circumstances for instance to help victims of revenge porn have explicit images removed⁶. David Newhoff, in a response to Smith,⁷ makes the point that in situations such as the Weinstein case and revenge porn situations there is substantial overlap with other areas of law which should, in an ideal world, step in to protect the moral position, i.e. Exposing the Weinstein abuse and removing unconsented explicit images, leaving copyright law to protect 'copyright purposes'. However, we do not live in a perfect world. Using copyright as a solution to target revenge porn is not ideal as it does not carry criminal sanctions but, if successful, will remove the images and restore dignity to the victim. Using copyright in this way, even if that is to control the narrative of your content in the way Netflix did is part of the fundamental nature of copyright. The US case of *Bassett v. Jensen* exemplifies this point well⁸. A rented home was used to film pornographic films without the homeowner's (Basset) knowledge. Basset made several legal cases against the defendant to have the videos taken down and found success in the copyright challenge. Having raised several legal challenges

³ Smith(n1) p197.

⁴ Smith(n1) p208.

⁵ Smith(n1) p215.

⁶ Smith(n1) p222.

⁷ David Newhoff, 'A Response to "Weaponizing Copyright" by Cathay Y. N. Smith' (*The Illusion of More*, 25 May 2021) <<https://illusionofmore.com/a-response-to-weaponizing-copyright-by-cathay-y-n-smith/>> accessed 29 February 2024.

⁸ Ann Potter Gleason, 'Weaponizing Copyright?' (*The National Law Review*, 28 September 2021) <<https://www.natlawreview.com/article/weaponizing-copyright>> accessed 29 February 2024.

against the defendant, it demonstrates that the intent of the copyright challenge was not in reality to pursue the exclusive right to display her art, but instead for the personal interest of not having her home be shown in adult films. This outcome could only be reached because she had legitimate copyrighted works being used without her consent or licencing. Suppose this was the house of a famous artist who had unfinished works exposed in this manner, that would result in a very legitimate economic and exclusive rights reason to pursue protection. The intention behind both pursuits of copyright claims may be different, but in meeting the requirements of the law they are no different. If the law is going to protect copyrighted content from infringing behaviour, whether or not that happens to coincide with the personal interests of the author should not matter. The law is in many respects a black letter that establishes how copyrighted content can be used and how the colouring, or intent, to use the law occurs does not change the lawfulness of the circumstance.

In furthering this argument that the intent or interest behind copyright action should not matter, it is important to consider this position alongside that of the ‘purpose’ of copyright. There is not a consensus as to why copyright is important⁹. Instead, multiple theories of copyright have developed. Arguably, the theory that best aligns itself with the statement in question is the utilitarian theory which accepts copyright as an incentive for creation which in turn benefits society.¹⁰ This position prioritises the public good and understands copyright as a necessary evil. From this perspective, the statement rings true. Allowing copyright to protect exclusive control and economic rights is what is needed to act as an incentive. Therefore, from this position, allowing copyright to be used for the protection of strictly personal interests overextends the use of copyright beyond that of a mere incentive to create.

⁹ William Fisher, *‘Theories of Intellectual Property’* (2001) New Essays in the Legal and Political Theory of Property p5.

¹⁰ Fisher(n9) p9.

However, this may not be so clear-cut. The heart of a utilitarian theory is that the law should facilitate the greater good or maximise total welfare.¹¹ Copyright does not require registration and as such is automatically granted to any work which meets the often-low barrier of qualification. Resultingly, the vast majority of the public holds copyright in some work or another. While a single instance of copyright being enforced to protect a personal interest may not maximise total welfare, it is argued that allowing copyright to protect personal interests gives greater power to everyone.

Moreso, when looking at this position through the lens of the labour theory of copyright, whereby the justification of copyright results from creators being able to enjoy the fruits of their labour¹², it is argued that this should entail the creator of a copyrighted work to use that work however they please and have full access to the protection given by copyright- regardless of whether they are using copyright to protect a personal interest. For instance, when musicians used copyright laws to stop Donald Trump using their music in campaign rally's,¹³ they were able to do so because the music was their creation and, regardless of whether that was protecting personal interests or not, they have the choice as to how the work is used as the work only exists because of their labour.

Lastly, in looking at the other major theory of copyright, personality theory offers the perspective that a work is an extension of the author¹⁴ and thus mostly strongly supports the idea that copyright should be able to protect the personal interest of the author. For instance, The Duchess of Sussex was able to use copyright law to challenge the publishing of private

¹¹ Fisher(n9) p9.

¹² Fisher(n9) p15.

¹³ Smith(n1) p219.

¹⁴ Fisher(n9) p19.

letters in the British print media¹⁵. She did not do so to maintain exclusive publishing rights or to gain financially from the letters, however, they were deeply personal and connected to her. The work in this case was never intended to be used commercially or made available publicly and this is where copyright arguably has to be able to be used to protect personal interests. Regardless of what theory of copyright this situation is looked at, the personal interests of the Duchess to have her private letter's kept private shows that copyright has importance beyond Smith's traditional view on how copyright should be used.

The examples given in this paper are not "weaponizing" copyright so much as they are using it to protect their work in a manner, they see fit- regardless of if that is their sole intention or not.

¹⁵ Hayleigh Boshier, 'Meghan Markle: Mail on Sunday loses appeal in privacy case – the judgment explained', (*The Conversation*, 2 December 2021) <<https://theconversation.com/meghan-markle-mail-on-sunday-loses-appeal-in-privacy-case-the-judgment-explained-173095>> accessed 29 February 2024.

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Articles

Cathay Y. N. Smith, '*Weaponizing Copyright*' (2021) *Harvard Journal of Law & Technology* Volume 35, Number 1, 194.

William Fisher, '*Theories of Intellectual Property*' (2001) *New Essays in the Legal and Political Theory of Property*

Blogs

Ann Potter Gleason, '*Weaponizing Copyright?*' (*The National Law Review*, 28 September 2021) < <https://www.natlawreview.com/article/weaponizing-copyright> > accessed 29 February 2024.

David Newhoff, '*A Response to "Weaponizing Copyright" by Cathay Y. N. Smith*' (*The Illusion of More*, 25 May 2021) < <https://illusionofmore.com/a-response-to-weaponizing-copyright-by-cathay-y-n-smith/> > accessed 29 February 2024.

Hayleigh Boshier, '*Meghan Markle: Mail on Sunday loses appeal in privacy case – the judgment explained*', (*The Conversation*, 2 December 2021) < <https://theconversation.com/meghan-markle-mail-on-sunday-loses-appeal-in-privacy-case-the-judgment-explained-173095> > accessed 29 February 2024.